

SC127504 SC127504

County: los-angeles

Division: Civil Law and Motion

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Case Number: SC127504 Hearing Date: September 1, 2026 Dept: M

CASE NAME: Siddiqui, v. Molayem

CASE NO.: SC127504

MOTION: Motion

for Reconsideration

HEARING DATE: 9/1/2026

Legal

Standard

A non-prevailing party may make a motion to reconsider and enter a different order under the following conditions: (1) brought before the same judge that made the order sought to be reconsidered; (2) made within 10 days after service upon the party of the notice of entry of the order (extended under CCP § 1013 for type of service); (3) based on new or different facts, circumstances or law than those before the court at the time of the original ruling; (4) supported by a declaration stating the previous order, by which judge it was made, and the new or different facts, circumstances or law claimed to exist; and (5) the motion must be made and decided before entry of judgment. (CCP, § 1008.)

The legislature

intended to restrict motions for reconsideration to circumstances where a party offers the court some fact or circumstance not previously considered and some valid reason for not offering it earlier. (Gilberd v. AC Transit (1995)

32 Cal.App.4th 1494, 1500.)
Thus, “[t]o be

entitled to reconsideration, a party should show that (1) evidence of new or different facts exist, and (2) the party has a satisfactory explanation for failing to produce such evidence at an earlier time." (Mink v. Superior Court (1992) 2 Cal.App.4th 1338, 1342.) The moving party must demonstrate that such newly discovered evidence could not, with reasonable diligence, have previously discovered and produced. (Wilcox v. Ford (1988) 206 Cal.App.3d 1170.)

The court may also reconsider its prior interim orders on its own motion to correct its own errors. (Le Francoise v. Goel (2005) 35 Cal.4th 1094, 1107-09.)

Analysis

Defendants George Molayem, Federal Government Auctions, and U.S. Jewelry Liquidation move for reconsideration of the Court's July 15, 2026, order requiring an undertaking pending appeal.

Defendants

fail to cite any new or different facts that could not have been submitted to the Court at the prior hearing. Defendants only contend that the undertaking should be modified to reflect the fact that the Judgment herein required Siddiqui to return \$173,663 of jewelry sixty days after Molayem satisfied the judgment, and that Siddiqui has failed to return the jewelry. (Kimmel Decl., ¶ 8.) This fact was known to Defendants in August 2022, several years before the undertaking motion was made. (Kimmel Decl., ¶ 7.) Defendants present no valid reason why they did not offer this evidence in opposition to the undertaking motion. As noted, Defendants failed to oppose the undertaking motion, despite valid notice. (Kimmel Decl., ¶¶ 2-3.)

Accordingly, the motion is DENIED.